DIFC Courts Order No. 1 of 2010 In respect of The DIFC Courts Small Claims Tribunal (Limits of Jurisdiction)

JANUARY 12, 2010 COURT ADMINISTRATIVE ORDERS

I, Michael Hwang, Chief Justice (/glossary/chief-justice/) of the Dubai International Financial Centre Courts (/glossary/court/),

Having reviewed—

Dubai Law No. 9 of 2004 in respect of the establishment of the DIFC (/glossary/difc/);
Dubai Law No. 12 Of 2004 in respect of the Judicial Authority at the DIFC;
DIFC Law No. 10 of 2004 in respect of the DIFC Courts (/glossary/difc-courts/) ("DIFC Courts Law");
DIFC Courts Order No. 2 of 2007 establishing the Small Claims Tribunal (/glossary/tribunal/) ("SCT"); and
Part 53 of the Rules (/glossary/rules/) of the DIFC Courts

And Whereas—

(A) The DIFC Courts Law authorises the Chief Justice of the DIFC Courts where he considers it appropriate, to set up and administer Tribunals of the DIFC Courts, and to authorise rules (/glossary/rules/) for their administration, which shall be set out in the Rules of Court (/glossary/court/) (Article 14(3)).

(B) The SCT was established pursuant to DIFC Courts Order No. 2 of 2007 issued by the Chief Justice.

(C) The Rules of the DIFC Courts (the "RDC") have been enacted by His Highness The Ruler (/glossary/ruler/) of Dubai pursuant to Article 31(1) of the Court Law (/glossary/court-law/) and contain at Part 53 the rules relating to the SCT; and

(D) The SCT is recognised as a mechanism for the prompt and cost-efficient hearing and determination of claims within the jurisdiction (/glossary/jurisdiction/) of the DIFC Courts.

Now I hereby order and direct as follows

(1) The SCT shall hear claims

(a) where the amount of the claim or the value of the subject-matter of the claim does not exceed AED 100,000 (one hundred thousand **UAE (/glossary/uae/)** Dirhams); or
(b) where the claim pertains to the employment or former employment of a party and all parties to the claim elect in writing that it be heard by the SCT; or
(c) which do not fall within the provisions of paragraph 1(a) or 1(b) above, but in respect of which (i) the amount of the claim or the value of the subject-matter of the claim does not exceed AED 500,000 (five hundred thousand UAE Dirhams); and (ii) all parties to the claim elect in writing that it be heard by the SCT.

(2) H.E. Justice Omar Al Muhairi, H.E. Justice Ali Al Madhani, Shamlan Al Sawalehi, Mark Beer and Amna Al Owais shall be members of the SCT.

(3) A separate register of proceedings in the SCT shall be maintained under the general direction of the SCT **Registrar (/glossary/registrar/)**. (Presently Amna Al Owais)

(4) For the purposes of this Order, claims shall include counterclaims, save that where a **counterclaim (/glossary/counterclaim/)** would not otherwise be within the SCT's jurisdiction, an SCT member shall have power to direct that the proceedings shall be transferred to the Court of First Instance of the DIFC Courts. 'Employment' where used in this Order shall mean the relationship under a contract for the provision of services by a natural person (whether under a contract of employment or otherwise).

(5) For the avoidance of doubt it is declared that permission to appeal an SCT judgment may be made subject to such conditions, as the SCT **Judge (/glossary/judge/)** may consider appropriate including conditions relating to the costs of the appeal. Without prejudice to the generality of the forgoing, permission may be made conditional upon the appellant agreeing not to seek any costs Order against the respondent if the appeal succeeds, or to bear both parties' costs of the appeal in any event.

(6) This Order shall take effect from 17 June 2010 and RDC Rule 53(2) shall be interpreted accordingly. Order No. 2 of 2007 shall remain in full force and effect save as amended by this Order. This Order shall be known as The DIFC Small Claims Tribunal (Limits of **Jurisdiction (/glossary/jurisdiction/)**) Order, Order No. 1 of 2010.

Chief Justice Michael Hwang